

LCPS GUIDELINES FOR PROTECTIVE ORDERS

A protective order is an order from the courts to the parties named in the order.

This policy sets forth the Loudoun County Public Schools (LCPS) guidelines for its schools' response upon being notified of a protective order in which students are the subject. It provides relevant information on how school administrators should manage the receipt of a protective order, required documentation schools should maintain, related support plans to ensure student and staff safety, and confidentiality and privacy considerations.

A. Definitions. This document uses the following definitions:

1. Petitioner. The person filing for a protective order to prohibit further alleged acts of abuse. In cases of alleged family abuse, the petition may include family or household members, including children, to be protected.

2. Protected student. The student whose health and safety are the subject of a protective order. A protective order contains provisions prohibiting certain conduct with a protected student. The protected student is not necessarily a petitioner filing for a protective order but could be included in the protection order.

3. Respondent. The individual that the protective order is filed against. Note that protective orders involve civil law, and therefore a respondent has not necessarily been criminally charged or convicted. For some criminal court orders, the respondent is the person whose conditions of pretrial or posttrial supervision or release require no contact with a protected student. The respondent may be a family member or non-family member, including another student.

B. Types of Protective Orders. In Virginia, a protective order is a legal order issued by a magistrate or judge to protect the health and safety of a person who is alleged to be a victim of any acts of violence, force, or threat that results in injury or places that person in fear of death, sexual assault, or injury. Juveniles may be the subject of a protective order under two circumstances—as a protected student or as a respondent. There are three types of protective orders:

1. An Emergency Protective Order (EPO), which expires at the end of the third day following issuance—or the next day court is in session—whichever is later.

2. A Preliminary Protective Order (PPO), which lasts 15 days or until a full hearing is held.

3. A Protective Order (PO), which may last up to two years.

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C. Documentation of Protective Order. Regardless of how the school receives notice of an EPO, PPO, or PO, the principal should obtain and document information regarding the order and include the following items in the student's school-based educational records:

1. Date of receipt of protective order;
2. Expiration date of protective order;
3. Name of person providing copy of protective order;
4. Name of protected student;
5. Name of respondent; and
6. Copy of the protective order;

Other information may also be included in the student's educational records, such as:

1. Special arrangements or restrictions relating to contact with student;
2. Other siblings also impacted by the order; and
3. Photograph of respondent, if received.

The principal or principal's designee shall notify the Senior Registrar at the division level of the protective order to ensure that pertinent information concerning the EPO, PPO, or PO is entered into the relevant electronic student information system. The senior registrar's office will add necessary "alerts" in the student information system. The school will maintain a hard copy of the protective order in the student's cumulative folder and forward a copy of any active protective order if the student transfers to a new school.

D. School Administration Response. Upon the receipt of any notification of an unexpired EPO, PPO, or PO, school staff shall immediately notify the school principal or assistant principal. When the principal or assistant principal receives a copy of an EPO, a PPO, or a PO naming a student as a protected person, the school administrator should document the receipt of that court order. In the event a staff member's health and safety are the subject of the order or a staff member is the respondent, the principal or assistant principal should immediately contact LCPS's Department of Human Resources and Talent Development.

Given the time-sensitive nature of the information, the principal shall implement a process to rapidly summarize the order to include relevant information in an easy-to-understand format (e.g., the name of the respondent, what conduct is prohibited, the order's expiration date) and communicate that information to all relevant and essential staff as soon as practicable. Examples of personnel who may need to be informed include, but are not limited to, all teachers of any affected student, administrators, specialized instructional support personnel (e.g., school counselor, psychologist, social worker, and nurse), bus drivers, office staff, school security or school resource officers (SROs), staff responsible for duties such as parent pick-up, or any other personnel who

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may be responsible for the student, have a legitimate educational interest to access information regarding the student, or may have contact with any affected student.

If the EPO, PPO, or PO concerns students who attend different schools within LCPS, the principal or assistant principal who received the order ~~will~~ shall notify the principal or assistant principal of any other school where an affected student attends. A copy of the protective order shall be sent to any other affected student's then-current school of attendance as soon as practicable, but no later than the next working day.

E. Student Discipline. Whenever a school administrator learns that an EPO, PPO, or PO is the result of suspected or confirmed student-to-student harassment or misconduct that either took place under school authority or otherwise impacted the educational environment, schools and school officials should take appropriate action to investigate whether there has been any violation of the LCPS Student Code of Conduct and take appropriate disciplinary action.

F. Student Support Plan. Upon the receipt or notification that a student is the subject or respondent of a protective order, the principal shall offer to collaborate with the parent or legal guardian, as appropriate, when there is a need to develop a plan to support the student to ensure student safety while the student is on school property, traveling to/from school, and during school-sponsored activities.

In such instances, a school team will be designated to develop a plan to support the safety and well-being of any students identified in the protective order. The school team will consist of a school administrator, school counselor and/or social worker, safety and security staff, School Resource Officer, and staff to include as needed: instructional staff, case manager, ELL staff, and other school-based staff. The development of such a plan should not delay the initial notification of the provisions of the order to appropriate staff; rather, the details of a more comprehensive support plan can and should be communicated to relevant and essential staff after careful consideration of how to meet the safety needs of the student.

G. Support Plan Elements. The following are elements that may be included in a support plan to meet the safety needs of the student.

1. The parent or legal guardian may wish to change directory information and other emergency information or limit access to the directory information. The Virginia Attorney General's office also provides a service, the Address Confidentiality Program (ACP), that allows victims of domestic violence, stalking, sexual violence, or human trafficking to keep their new location unknown to the abuser and an ACP post office number as a substitute address.

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2. What actions the student or school personnel will take if the respondent violates the order. In situations where the respondent has not been served with the order, the plan may need to include requesting the parent to contact law enforcement, who could serve the applicable order.
 3. The process for students and school personnel to report a violation of the applicable order to either parent(s)/guardian(s) or law enforcement.
 4. Expectations and planned responses for incidental contact.
 5. Supportive measures and accommodations to ensure the safety and security of the student, such as changes/adjustments to travel routines, class schedules, and school enrollment.
 6. Other measures school personnel can use to promote emotional and physical safety in the school setting for the student.
 7. The need for any referrals to community-based services and supports.
- H. Confidentiality and FERPA Considerations. Information contained in an EPO, PPO, or PO is confidential and should only be shared with relevant and essential personnel for a legitimate educational interest. Staff shall only discuss or share information regarding such orders with those who have a legitimate educational interest to know. Staff shall be aware that in some situations, a parent or guardian might have intentionally not shared details regarding the protective order with the student. In those situations, staff members shall not discuss such aspects of the order with the student.

The Family Educational Rights and Privacy Act of 1974 (FERPA) (20 U.S.C. §1232g; 34 CFR Part 99) is a federal law that protects the privacy of student education records and gives parents certain rights with respect to their children's records. In situations where the respondent is a parent or guardian and the school determines that there is an articulable and significant threat to the health or safety of any student or school personnel, the school may withhold sharing student records with the respondent. Schools should contact the Office of School Administration for guidance if there are any questions relating to the provisions of an EPO, PPO, or PO and a parent's rights to access educational records or participate in educational decisions.

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